

Tek Chand v. State of U.P. — recovery certificate and restoration of supply

High Court of Judicature at Allahabad · Division Bench · 21 November 2012 · WRIT - C No. 60067 of 2012 · **Writ dismissed; relegated to Consumer Forum and restoration application.**

HEADNOTE

The Allahabad High Court declined to entertain a writ seeking quashing of a recovery certificate for electricity dues where the consumer had already approached the District Consumer Forum and the amount had been recovered. The petitioner was left to pursue that claim before the Forum under the U.P. Electricity Supply Code, 2005, and to apply to the competent authority for restoration of connection.

FACTUAL SUMMARY

Tek Chand sought quashing of a recovery certificate dated 23 August 2012 issued by the Executive Engineer for Rs 89,685 plus charges as electricity dues. He had already filed a claim petition before the District Consumer Forum claiming damages and disputing those dues. Counsel submitted that the entire amount had been collected forcefully from him and that his electricity connection had still not been restored despite payment.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

recovery of dues and restoration of connection

HOLDING

A writ challenging a recovery certificate for electricity dues will not be entertained where the consumer has already approached the District Consumer Forum and the dues have been recovered. The claim may be pursued before the Forum under the U.P. Electricity Supply Code, 2005, and restoration of connection may be sought by application to the competent authority. Writ dismissed. ¶ 1

FLAG Order cites the Supply Code generally with no clause number. It treats the District Consumer Forum as under the U.P. Electricity Supply Code, 2005.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CERTIFICATE AND THE ELECTRICITY DUES

Left to the pending claim before the District Consumer Forum. ¶ 1

NOT DECIDED — ENTITLEMENT TO RESTORATION OF THE ELECTRICITY CONNECTION

Left to an application before the competent authority. ¶ 1